When Experience Meets Environment: Professional Backgrounds, Court Composition, and Decision-Making in Immigration Court

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Abstract

Research on judicial behavior shows that professional backgrounds shape how judges decide but often assumes the effect is uniform across institutional settings. Focusing on U.S. immigration courts, we argue that the influence of professional experience depends on the specificity of prior socialization and the court in which a judge sits. Analyzing over 550,000 decisions by 502 judges in 67 courts (2015–2018), we disaggregate backgrounds by legal domain and examine how court composition conditions their influence. Each additional year as an ICE attorney is associated with a lower relief rate, regardless of court composition. Experience as a nonprofit immigration defense attorney is associated with higher relief rates only where former ICE colleagues are few, fading as their share grows. We interpret this as asymmetric conformity, in which lenient judges in courts dominated by former ICE attorneys are visible and sanctionable outliers while restrictive judges face no comparable cost.

Keywords: immigration judges; judicial decision-making; professional backgrounds; court composition; conformity

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1 Introduction

In 2025, the second Trump administration fired more than 100 immigration judges (hereinafter IJs), roughly one in seven on the bench nationwide (Peña 2025). According to one analysis of 70 of the terminated IJs, those with backgrounds defending immigrants, and no prior Department of Homeland Security (DHS) experience, comprised 44% of the firings — more than double the share of IJs who had worked only for DHS (Bustillo 2025b). This pattern suggests that professional background serves as a screening criterion in the continued efforts to align the immigration courts with the administration's enforcement priorities (Blasingame et al. 2024; Kim 2018; Kim and Semet 2019). The firings are also an instance of a more general strategy. Because presidents depend on career officials whose policy preferences often diverge from their own, they attempt to close that gap through personnel decisions — appointments, removals, and reassignments — aimed at the agencies most central to their agenda (Bolton, Potter, and Thrower 2016; Bednar and Lewis 2024; Bednar 2025; Hausman et al. 2023). The immigration courts, whose judges are appointed by and answer to the Attorney General, have become a key target.

The mounting pressure raises a broader question: do professional backgrounds shape decision-making in immigration court, and if so, under what conditions? Existing scholarship offers strong evidence that judges' prior careers shape how they adjudicate (Harris and Sen 2026; George and Weaver 2017; Miller and Curry 2023; Oren and Topaz 2025). Former prosecutors deny suppression motions more often (Miller and Curry 2023); former public defenders sentence more leniently (Harris and Sen 2026); and former law enforcement order detention and impose cash bail at higher rates (Oren and Topaz 2025). The relevant literature, however, has two key limitations. First, it often operationalizes professional background as overly broad categories (e.g., prosecutor vs. non-prosecutor), obscuring within-category variation. Second, it tends to treat professional background as a fixed trait, rather than as context-specific socialization whose expression depends on a judge's workplace. Recent work shows that institutional environment shapes adjudication (see Harris 2024; Blasingame et al. 2024), but the broader literature assumes professional background effects are uniform across contexts, leaving unanswered whether court-level conditions — professional

diversity in particular — moderate how prior experience translates into decisions.

We theorize that professional backgrounds influence judicial decision-making in two stages: IJs form lasting decision-making heuristics in prior occupations, and the court where they later sit shapes the expression of them. Formation depends on the substantive domain of the IJ's prior practice (immigration vs. non-immigration law) and the role orientation of that work (prosecutorial vs. advocacy-oriented). We therefore treat these dimensions separately, distinguishing forms of socialization that are obscured when professional experience is collapsed into categories such as "former prosecutor." Immigration courts develop local norms of case evaluation that reflect the backgrounds of the IJs who staff them; those norms raise the cost of deviating from prevailing practice and so govern whether an individual IJ's heuristics influence decisions. Notably, most immigration courts are dominated by former Immigration and Customs Enforcement (ICE) trial attorneys while others are more heterogeneous (see Figure 2). Our central expectation is that the influence of an IJ's professional background on decisions is conditional on the composition of the court in which they serve.

To test our theory, we analyze 550,827 decisions by 502 IJs across 67 courts between 2015 and 2018, drawing on an original dataset of these judges' professional backgrounds. We find support for both arguments. First, each additional year as an ICE attorney is associated with a lower relief rate, an association that is significantly stronger than for years as a federal prosecutor outside immigration law. Years of nonprofit immigration defense experience show a positive but weaker average association with relief, an average that conceals sharp variation across courts. Second, the professional composition of the court in which an IJ hears cases conditions these background differences asymmetrically. The positive association between immigration defense experience and granting relief weakens as the proportion of former ICE attorneys in a court increases, eventually becoming statistically indistinguishable from zero. By contrast, the negative association between immigration enforcement experience and relief remains consistent across court compositions. In courts with higher shares of former ICE attorneys, IJs with higher relief rates are visible and sanctionable outliers who face pressure to abide by restrictive local norms, whereas restrictive

IJs face no comparable cost for deviating in any court. Together, these findings suggest that understanding how professional backgrounds shape judicial behavior requires attention to both the specificity of prior socialization and the institutional context in which judges operate.

2 Professional Backgrounds and Immigration Courts

Social background theory has long demonstrated that a confluence of personal attributes and experiences, "nature and nurture," shapes judicial decision-making across legal contexts (George and Weaver 2017, p. 286). Whereas early scholarship focused on demographics, especially race and gender (e.g., Boyd, Epstein, and Martin 2010; Cox and Miles 2008; George and Yoon 2008; Morriss, Heise, and Sisk 2005), recent studies have taken an interest in the relationship between judges' professional backgrounds and their decisions. This turn reflects a growing recognition that career experience often offers a more proximate and theoretically tractable pathway to judicial behavior than demographic attributes.

For example, judges with law enforcement backgrounds order detention and impose cash bail at higher rates than judges without such backgrounds, independent of charge severity and criminal history (Oren and Topaz 2025). Former prosecutors with five years or more of such experience are more likely to deny suppression motions in search-and-seizure cases in federal district court (Miller and Curry 2023). Judges with prosecutorial experience and corporate backgrounds are less likely to decide civil employment cases in favor of claimants (Shepherd 2021). Conversely, former public defenders are less likely to incarcerate defendants and, when they do, impose shorter sentences (Harris and Sen 2026). While this body of work establishes that professional experience shapes judicial behavior, it provides limited guidance on how different forms of experience operate or when we should expect the effects of professional background to vary.

Two mechanisms define the relationship between professional backgrounds and judicial decision-making: selection and socialization (Berryessa, Dror, and McCormack 2023). Selection captures how people opt into different career paths according to pre-existing dispositions, values, or ideological commitments — a process reinforced by judicial selection systems that often favor prosecutors (Swisher 2010). Socialization involves the acquisition of cognitive habits, evaluative frameworks,

and normative orientations through extended immersion in a professional role, which persist in the form of "heuristics (mental shortcuts)" when transitioning to a new career because "[they] have worked before" (Nir and Liu 2023, p. 45). The distinction matters theoretically because selection implies backgrounds are markers, while socialization posits they are formative. Yet, as Oren and Topaz (2025, p. 3) observe, "much of the literature documents role-congruent patterns but cannot adjudicate between potential mechanisms."

Parsing selection from socialization is challenging because both mechanisms predict similar observable relationships. In the context of U.S. immigration courts, however, socialization is widely viewed as a particularly relevant pathway. The partisan identity of the appointing administration does not predict removal rates (Kim and Semet 2019; Hausman et al. 2023), and IJs are drawn from unusually diverse career backgrounds (see Figure 1). These features suggest that professional experience may operate less as a proxy for preexisting preferences than as a source of learned heuristics later carried onto the bench. Yet even if socialization is the dominant mechanism, existing research typically treats these effects as invariant across institutional settings. Notably absent is a discussion of whether the professional composition of a court reinforces or moderates the heuristics judges developed before taking the bench.

Specifying how socialization operates also requires finer-grained measurement than the literature often employs. Research on immigration courts reveals both the promise and limits of existing approaches. Ramji-Nogales and Schoenholtz (2007), for example, find that judges with experience at the Department of Homeland Security (or its predecessor, Immigration and Naturalization Service) grant asylum at lower rates, while those with private practice, NGO, or academic backgrounds grant at higher rates — effects that grow over time. Yet because these categories bundle immigration-specific and non-immigration-specific experience, it remains unclear whether the observed patterns reflect exposure to immigration law in particular or more general differences between government and private-sector careers. More fundamentally, this ambiguity reflects a broader limitation in how professional background is conceptualized in the literature. Existing approaches treat professional experience as a set of homogeneous categories that affect judicial

behavior. This framing obscures the fact that professional experience operates as domain-specific socialization, in which different organizational contexts expose individuals to distinct legal frameworks and institutional norms that shape the heuristics they later bring to adjudication.

The study most closely related to ours is Keith, Holmes, and Miller (2013), though it has some important limitations. The authors construct a composite measure of "immigration liberalism" from 11 career background variables. This approach helps explain variation in asylum grant rates, but collapsing heterogeneous experiences into a latent ideological score prevents identifying which experiences matter and when. Their "cognitive" variant of the attitudinal model (Keith, Holmes, and Miller 2013, p. 263) thus recognizes that socialization shapes information processing but stops short of theorizing how institutional environment reinforces or moderates the heuristics judges carry over from past roles. Whether professional composition strengthens, weakens, or leaves unchanged the background effects of IJs' prior experience remains an open question.

These measurement and theoretical gaps take on special importance in immigration courts, where institutional conditions heighten reliance on heuristic reasoning. As of September 2026, 3.1 million cases were pending across 72 courts nationwide (Transactional Records Access Clearinghouse 2026). IJs operate in "overburdened and underresourced courts with high stakes for applicants" (Keith, Holmes, and Miller 2013, p. 263), pressured to decide cases efficiently (Baum 2009). Legal standards require subjective credibility assessments with limited evidentiary resources (Alexander 2006). The structural environment also favors enforcement; 67% of respondents lack legal representation as of August 2026 (Vera Institute of Justice 2026), and reversals by the Board of Immigration Appeals (BIA) are exceedingly rare (Hausman 2016). These conditions create an environment where heuristics developed through prior socialization have significant room to influence outcomes.

That said, top-down pressures work against individual variation. IJs are often characterized as "judges-as-bureaucrats" (Miller, Keith, and Holmes 2015, p. 54) or "bureaucrats in robes" (Jain 2018). These sobriquets signal the unique, at times precarious, institutional position that IJs occupy. Under the Immigration and Nationality Act (INA), IJs are appointed by and work under the direction

of the U.S. Attorney General (8 CFR § 1003.10(b)). Unlike Article III federal judges with lifetime tenure or administrative law judges with statutory protections, IJs lack comparable independent safeguards, leaving them susceptible to political pressure. These features suggest that the influence of prior professional socialization may be attenuated in environments where institutional pressures are strong, rather than operating uniformly across settings.

President Trump has persistently sought to reshape the immigration court system to serve his aggressive enforcement agenda (Kim 2018; Koh 2016). Blasingame et al. (2024) demonstrate that the case quota policy implemented during the first Trump administration shifted judges toward issuing more removal orders, with the strongest effects among those previously least inclined to do so. In other words, the pressure for restrictive decision-making pushed more permissive judges toward restrictiveness. Such pressure has been particularly acute in detained immigration courts, which hear removal cases of individuals held in custody (Eagly and Shafer 2024, p. 694). At least 48 such courts face higher case-completion demands, geographic isolation from obtaining attorneys, and different respondent populations with different sets of case facts. These competing forces — conditions that heighten reliance on prior heuristics and pressures that constrain individual variation — raise the question of which predominates, and under what circumstances.

3 Professional Diversity and Court Composition

We argue that the relationship between professional backgrounds and judicial decision-making unfolds in two stages: (1) before-the-bench career socialization that engenders enduring heuristics, and (2) institutional environments that condition the expression of those heuristics depending on the professional composition of the court. We disaggregate professional experience into a broader range of careers and measure tenure in these positions to specify what IJs are socialized *into*. We also examine how court context conditions the expression of prior socialization, using professional composition as a proxy for the local norms that define these workplace environments. As discussed below, we expect court composition to condition expression in one direction only, toward restrictiveness.

Extended immersion in a professional role creates cognitive habits, evaluative frameworks, and

normative orientations. These persist as heuristics when transitioning to a new role. We understand socialization as "the acquisition of the requisite orientations for satisfactory functioning in a job" (Parsons, 1951, p. 205 as cited in Nir and Liu 2023, p. 45). In high-volume, high-pressure contexts such as immigration courts, judges cannot reflect or deliberate fully on every case, suggesting they must rely on mental shortcuts from prior experience to perform effectively. The content of those heuristics varies not only with adversarial position (i.e., prosecutor versus defense) but also with organizational mission, degree of autonomy, professional community norms, and domain-specific expertise.

The "prosecutor" category as applied to IJs bundles distinct experiences, if left undifferentiated. For example, a former ICE trial attorney and a former state prosecutor both qualify as "prosecutors," yet their careers differ substantially. ICE attorneys are socialized into an organizational culture centered on enforcement and removal; they develop fluency in immigration law, familiarity with DHS evidentiary practices, and routine exposure to relief claims. State prosecutors handling unrelated criminal matters develop general adversarial instincts without this immigration-specific orientation. If socialization is the mechanism at play, these backgrounds should produce divergent judicial heuristics that translate into decision-making in ways that are empirically testable.

The same logic applies to defense backgrounds. An immigrant defense attorney has direct experience with the barriers that respondents face: the difficulty of documenting persecution, the challenges of testifying through interpreters, the consequences of adverse credibility determinations. This attorney develops heuristics attuned to the informational asymmetries and evidentiary limitations characteristic of removal proceedings. A public defender with no immigration caseload may carry forward a general disposition toward rights claims without the domain-specific knowledge that shapes how judges assess testimony and weigh evidence when a respondent requests some form of immigration relief. Ramji-Nogales and Schoenholtz (2007), for example, find that private practice and NGO experience predict higher asylum grant rates, but it is unclear whether immigration-specific defense work is driving this relationship.

We also expect longer tenure in a specific role to produce deeper imprints, echoing Miller

and Curry (2023) and Ramji-Nogales and Schoenholtz (2007). Short-term exposure may leave heuristics underdeveloped. It is also important to note that not all judges carry prior orientations forward unchanged. Interviews with former IJs from a related study suggest that certain IJs develop corrective impulses: some prosecutors grow disillusioned with enforcement, and some defense attorneys become skeptical of certain claims. Having done the job themselves, these individuals know what competent advocacy on their former side looks like and may hold its practitioners to it, generating within-category heterogeneity. Understanding how professional socialization shapes judicial behavior, particularly in immigration court, therefore requires attention to the specificity of prior experience, not merely its nominal category. These considerations lead to our first hypothesis below.

> *Hypothesis 1a (Prosecutorial Backgrounds):* Former ICE trial attorneys will grant relief at lower rates than former prosecutors without immigration enforcement experience.

> *Hypothesis 1b (Defense Backgrounds):* Former immigration defense attorneys will grant relief at higher rates than former defense attorneys without immigration experience.

Institutional context also shapes how prior socialization translates into decision-making. Scholars often examine this through "panel effects" — for example, whether and how serving with a female judge as a co-panelist causes male judges to behave differently (e.g., Boyd, Epstein, and Martin 2010). The issue is that IJs do not serve on panels; they work alone in the courtroom. But they do not work in isolation. Courthouses are workplaces, and the professional diversity among colleagues matters. Harris (2024), for instance, demonstrates that increases in the percent of Black judges in a courthouse are associated with a reduction in the likelihood of white judges ordering incarceration for Black defendants. We are concerned here with a different type of diversity but share the insight that it operates as a group-level characteristic.

We can identify three informal pathways through which the professional diversity of a courthouse might affect a judge's decision whether to grant some form of relief. First, through social comparison: judges share physical space, observe colleagues' docket outcomes, and hear who is granting and denying, thus developing a sense of what is "normal" in their court. Second, through case discussion: judges discuss challenging cases even without in-room deliberation, and these casual conversations can transmit norms about sufficient evidence, weighing country conditions, and crediting expert or witness testimony. Third, through local norms about "reasonable" grant rates: courthouses develop both informal benchmarks and reputations relative to which outliers are visible to colleagues, administrators, and ICE attorneys, potentially creating pressure toward restrictiveness. In an anonymous interview conducted for a related study,[1] a former IJ recounted:

> What shocked me when I came to [court x] in 1999 was people would admit and concede the factual allegations, and the charges just roll over. I came from [court y], where I first practiced as an attorney, and everything was fought tooth and nail. A couple of the former immigration judges who are now retired, they used to eat lunch in the cafeteria at [address] with the ICE attorneys who were on their dockets for the afternoon. And they would sit there and figure out over lunch what they were doing with the cases — complete ex parte communication. This also comes as a result of the culture of people [who] just moved one floor to the next.

These pathways suggest that court composition shapes not whether judges rely on prior heuristics, but whether those heuristics make them visible outliers among their colleagues. In courts with higher shares of former ICE attorneys, enforcement norms are the local default. Hypothesis 2 follows.

> *Hypothesis 2 (Court Composition):* Judges in courts with higher proportions of former ICE attorneys will grant relief at lower rates, controlling for individual background.

[1] Interview data were collected under an IRB-approved protocol in compliance with relevant laws; see the Online Appendix, Research Ethics, for details.

We expect court composition to condition background effects through one main pathway, conformity, and to do so asymmetrically, with the pressure falling only on former immigration defense attorneys. We reach this expectation from first principles by considering three rival accounts of how peers shape a prior disposition, deriving the sign each implies for the interaction between professional composition and background, and showing that the scope conditions of the first two fail in immigration court.

According to a logic of *amplification*, kindred peers reinforce a shared disposition, leading to group polarization (Moscovici and Zavalloni 1969). Here, former ICE IJs would become more restrictive where former ICE peers are many, producing a negative interaction effect. Conversely, former immigration defense IJs would become more permissive where former defense peers are many and former ICE peers are few, so the interaction between the proportion of former ICE IJs and years of immigration defense experience would also be negative. The issue with amplification, however, is that group polarization requires sustained deliberation among like-minded members (Sunstein 2002), in this case colleagues. Because IJs decide alone, the pathways described above signal what is "normal" rather than transmit arguments, providing little of the repeated exchange either camp would need to harden its disposition.

According to a logic of *identity threat*, the disposition of a minority group sharpens rather than softens when it is outnumbered (Branscombe et al. 1999). In immigration court, former ICE IJs would become more restrictive when they are in the minority, and former immigration defense IJs surrounded by former ICE peers would become more defensive of their prior, more permissive, orientation. Both interactions would then be positive: the ICE association would be steepest where ICE peers are few and flatten as their share rises, and the defense association would grow with that share. Yet minority resistance has necessary conditions: consistency over time, meaning a position is voiced repeatedly and visibly (Moscovici 1980; Nemeth 1986; Wood et al. 1994); a protected platform, meaning a post from which dissent cannot be removed (e.g., tenure); and low personal cost, meaning that holding out does not threaten the dissenter's job or standing — none of which is satisfied in immigration court. As noted above, IJs decide alone and rarely see each

other's reasoning, lack the safeguards enjoyed by Article I and III judges, and answer directly to the Attorney General, all of which work against sustained minority resistance.

Lastly, according to a logic of *conformity*, individuals abide by the norms of the group around them (Asch 1956; Cialdini and Goldstein 2004), and that influence grows with the size of the group (Latané 1981). If the pressure toward conformity were symmetric, a more permissive IJ with an immigration defense background would grant relief at lower rates in an immigration court whose norm is restrictiveness, and a stricter IJ with an ICE background would grant relief at higher rates in a court whose norm is permissiveness. Both judges would converge on a local norm shaped, in part, by the court's professional makeup. So, the interaction would be positive for former ICE IJs and negative for former immigration defense IJs.

Of course, peer pressure only works if there is a penalty for standing out (Deutsch and Gerard 1955), and in immigration court, we expect that penalty to run one way. High relief rates are both visible and costly: ICE trial attorneys can appeal grants to the BIA, the Attorney General can self-refer and assume control of cases, IJs face case completion metrics (Executive Office for Immigration Review 2025), and, as the 2025 removals showed, they can be dismissed. The same pressures do not fall on restrictive IJs. Most respondents (67%) have no lawyer (Vera Institute of Justice 2026), and even when denials are appealed to the BIA, only 0.2% of case appeals were sustained on the merits between October 2023 and September 2025 (Executive Office for Immigration Review 2026). In 2025, the Board sided with DHS lawyers in 97% of its published decisions (Bustillo and Mukherjee 2026). In short, the EOIR leadership, especially during the second Trump administration, favors strict enforcement. We therefore expect local norms to function as a ceiling for permissive IJs, who become visible outliers in courts with higher shares of former ICE attorneys, but not as a floor for restrictive IJs, who face no cost for standing out in heterogeneous courts. Asymmetric conformity thus predicts no interaction between court composition and years of ICE experience, and a negative interaction between court composition and years of immigration defense experience. We present hypotheses 3a and 3b below.

Hypothesis 3a (ICE Background × Court Composition): The restrictive association

between years of ICE experience and relief will not vary with the share of former ICE attorneys among an IJ's colleagues.

Hypothesis 3b (Defense Background × Court Composition): The permissive association between years of nonprofit immigration defense experience and relief will weaken as the share of former ICE attorneys among an IJ's colleagues rises.

The four accounts disagree on the sign of the ICE interaction in Hypothesis 3a, which is negative under amplification, positive under identity threat and symmetric conformity, and zero under asymmetric conformity. A null estimate, then, is evidence for our account of asymmetric conformity rather than an absence of evidence.

4 Data

To test our hypotheses, we assess the outcomes of immigration proceedings. The Executive Office for Immigration Review (EOIR), an agency within the Department of Justice, has made available to the public through Freedom of Information Act (FOIA) data on these proceedings. Each proceeding is identified by a proceeding number and includes the following information: the judge's name, the type of proceeding,[2] the adjudicated outcome, the disposition date, the hearing location, and case-based information like the adjudicative medium, criminal charges,[3] attorney representation, and the noncitizen's nationality and detained status.

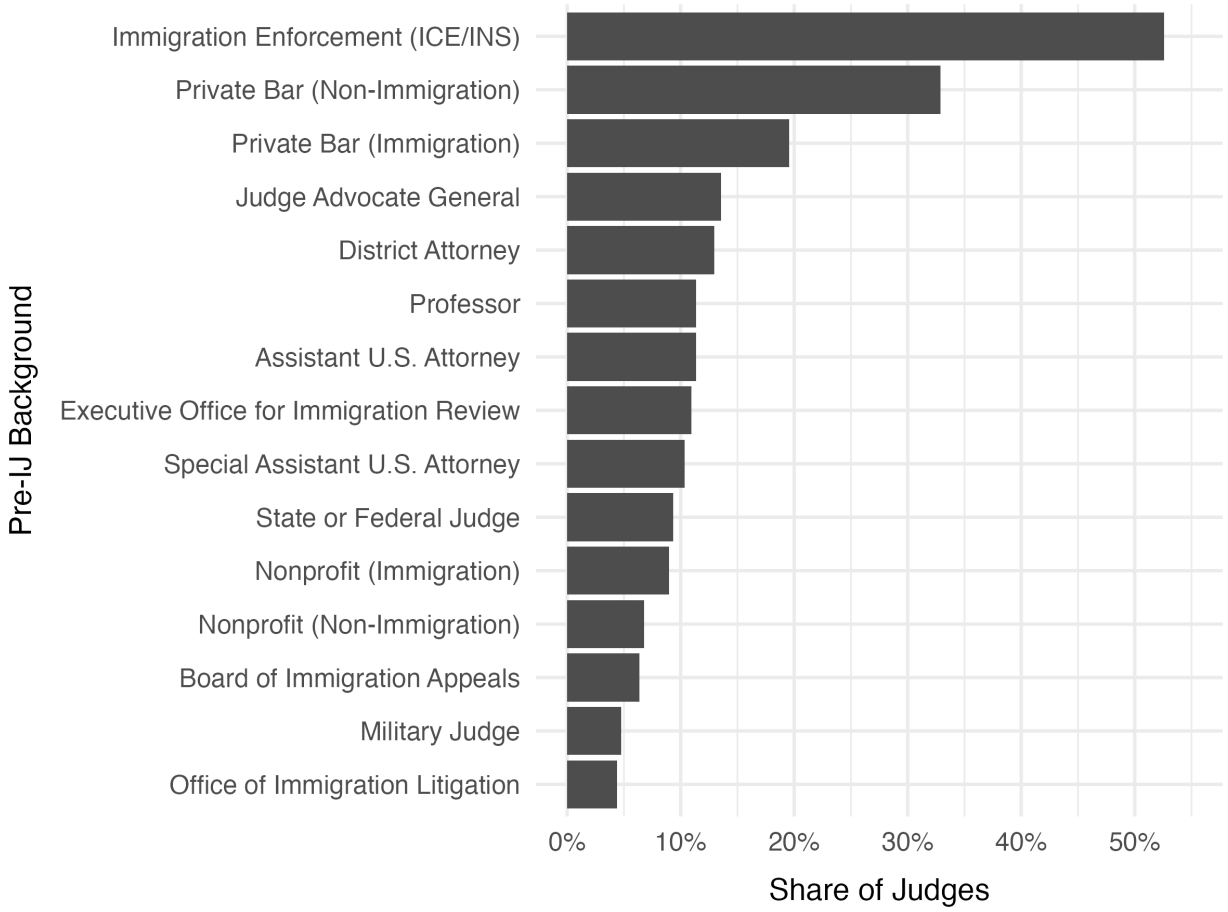
We focus on three kinds of proceedings within immigration court: removal proceedings, withholding cases, and asylum-only cases. Removal proceedings comprise the majority of proceedings and are where IJs determine whether respondents are removable or eligible for relief from removal. Relief encompasses a variety of legal pathways a noncitizen can take to prevent deportation, such

[2]There are proceedings and cases in the immigration data. A "proceeding" is what we traditionally call a case (Hausman et al. 2023).

[3]Removal proceedings are a civil matter. A noncitizen could have "crimmigration" cases being processed in federal court, such as illegal entry, or criminal records that exist independent of immigration-related matters.

as asylum. Withholding-only and asylum-only cases are limited proceedings wherein noncitizens are subject to expedited removal.[4] In these situations, noncitizens have diminished opportunities for relief pathways. Among these case types, we restrict our sample to cases that yield a substantive decision between 2015 and 2018, a period that spans the Obama-to-Trump transition and ends with the 2018 case-quota policy, before COVID-19 pandemic-era disruptions to the courts. This provides us with a sample of 639,626 substantive decisions by 610 judges. Our analysis sample is reduced to 502 judges after data cleaning, as some judges appeared in the dataset even if they had been appointed after a case's outcome date.

Figure 1: Professional Backgrounds of Immigration Judges



Note: Share of IJs with each pre-appointment background recorded in our data. Categories are not mutually exclusive. N = 502 judges.

[4]This means that the government does not have to place a noncitizen in removal proceedings.

To assess the impact of professional backgrounds on immigration proceedings, we leverage an original dataset focusing on IJs' pre-judicial employment backgrounds. When EOIR appoints new judges, it releases a professional biography about them. These statements summarize a judge's education, bar admissions, and any relevant prior employment.[5] We collect information from these statements that reflect the diversity of employment that judges possess. Instead of collapsing professional backgrounds into aggregate categories such as "prosecutor" and "defense," we record the specific type of employer and position each judge held, and the duration of each role in years. Figure 1 summarizes the distribution of professional backgrounds across judges in our sample. The data show that over 50% of IJs previously worked for immigration enforcement agencies such as Immigration and Customs Enforcement (ICE) and its predecessor, Immigration and Naturalization Service (INS). In contrast, the private immigration bar makes up less than 20% of judges, while non-profit backgrounds represent less than 10% of IJs. Because judges often held multiple positions before appointment, these categories are not mutually exclusive.

We then merge these data by the judge's identification number and clean for important court-level data. Judges do not always hear cases at their assigned immigration court; they often travel to multiple hearing locations or are assigned "televideo" dockets.[6] Immigration courts have administrative control over their assigned locations. We use EOIR archival records to match hearing locations to their immigration court.[7] We thus determine which locations were detention facilities and had detained dockets. We also code whether an IJ was "locally hired" to the immigration court they practice in. Figure 2 illustrates the geographic distribution of courts by professional composition, averaged across 2015–2018, showing substantial variation across the 67 immigration

[5] In some circumstances, the investitures could be vague. We supplemented these statements with information from LinkedIn profiles and newspaper articles related to judges' past employment.

[6] Over the sample period, 441 of the 502 judges hear cases in more than one court, although the median judge hears 96% of their cases in a single court. We therefore measure court composition at the court of the hearing location, so that a judge's "colleagues" are the judges deciding cases in the same court and year.

[7] The current record can be accessed via the Department of Justice here.

courts in our sample.

Figure 2: Geographic Distribution of Immigration Courts by Professional Composition



Note: Each point represents an immigration court; shading indicates the proportion of judges with prior ICE/OPLA experience (2015–2018 average). 65 of the 67 courts in the analysis sample are shown; the Guam and Saipan (Northern Mariana Islands) courts are excluded. Courts in the same city are slightly offset for visibility.

We also obtain other relevant information. Using United Nations nationality data, we were able to determine noncitizens' regions of origin (22 regions in total).[8] We did this to account for the fact that immigrant population waves often come from certain regions of the world.[9] We also measure IJ tenure as years on the bench at the time of each decision.

Table 1 provides descriptive statistics for these data. Overall, the judge-level mean of receiving relief is quite low (30%), which we theorize is driven in part by IJs with ICE/OPLA backgrounds,

[8]These data can be accessed via the United Nations Statistics Division here, and our coding schema is in the appendix.

[9]Because certain regions (e.g., Central America) are overrepresented in immigration court, nationality-level fixed effects would be sparse for many countries. Regional groupings provide more tractable estimation.

who make up a majority of observations across the sample and a majority of judges within individual courts. The average judge hears approximately 1,274 cases across the sample timeframe. Approximately 33% of respondents are detained at the time of their hearing.

Table 1: Descriptive Statistics

Variable	Mean	Median	SD	Min	Max
Judge-Level					
Tenure (end of sample)	9.00	7.00	9.56	0	36
Appointed by Democratic AG	0.55	1	0.50	0	1
ICE/OPLA/INS Attorney	0.53	1	0.50	0	1
Years at ICE/OPLA/INS	5.69	3	6.68	0	29
Assistant U.S. Attorney	0.11	0	0.32	0	1
Years as AUSA	1.25	0	4.50	0	32
State Prosecutor	0.13	0	0.34	0	1
Years as State Prosecutor	0.80	0	2.38	0	18
JAG Corps Attorney	0.14	0	0.34	0	1
Years in JAG Corps	2.02	0	5.92	0	30
Nonprofit Immigration Attorney	0.09	0	0.29	0	1
Years as Nonprofit Immigration	0.68	0	2.69	0	24
EOIR or BIA Attorney	0.15	0	0.36	0	1
Years at EOIR/BIA	1.18	0	4.45	0	46
Military Judge	0.05	0	0.21	0	1
Years as Military Judge	0.26	0	1.55	0	17
Cases Decided	1274.16	1105	1173.08	1	6603
Relief Rate	0.30	0.23	0.24	0	1
Court-Year Level					
Proportion ICE/OPLA Judges	0.56	0.51	0.23	0	1
Detention Court	0.41	0	0.49	0	1
Detained Docket	0.20	0	0.40	0	1
Case-Level					
National Security Risk	0	0	0.01	0	1
Respondent had Attorney	0.59	1	0.49	0	1
Respondent Detained	0.33	0	0.47	0	1
Televideo Hearing	0.19	0	0.39	0	1

Note: Judge-level statistics summarized across 502 judges. Court-year statistics summarized across court-years (2015–2018). Case-level statistics summarized across 639,626 cases. Proportion ICE/OPLA Judges reports raw court-year proportion; models use leave-one-out measure.

5 Methodology

We estimate the following ordinary least squares (OLS) regression models:

$$\text{Relief}_i = \sum_k \beta_k \text{ProsecutorYears}_{k,j(i)} + \sum_k \delta_k \text{DefenseYears}_{k,j(i)} + \mathbf{X}_i\gamma + \phi_r + \psi_c + \tau + \epsilon_i \quad \text{(H1)}$$

$$\text{Relief}_i = \beta_1 \text{PropICE}_{j(i)ct} + \mathbf{X}_i\gamma + \phi_r + \psi_c + \tau + \epsilon_i \quad \text{(H2)}$$

$$\begin{aligned}\text{Relief}_i = {} & \beta_1 \text{ICEYears}_{j(i)} + \beta_2 \text{NonprofitImmYears}_{j(i)} + \beta_3 \text{PropICE}_{j(i)ct} \\ & + \beta_4(\text{PropICE}_{j(i)ct} \times \text{ICEYears}_{j(i)}) + \beta_5(\text{PropICE}_{j(i)ct} \times \text{NonprofitImmYears}_{j(i)}) \\ & + \mathbf{X}_i\gamma + \phi_r + \psi_c + \tau + \epsilon_i \end{aligned} \quad \text{(H3)}$$

where i indexes cases, the unit of analysis; $j(i)$ is the judge deciding case i; k indexes types of professional background; r indexes the respondent's region of origin; c indexes immigration courts; and t indexes years. Background variables are measured at the judge level, and $\text{PropICE}_{j(i)ct}$ is the leave-one-out share of judge j's colleagues in court c and year t with ICE/OPLA experience. $\mathbf{X}$ is a vector of case and judge controls, ϕ_r denotes region-of-origin fixed effects, ψ_c court fixed effects, and τ a linear year trend. Standard errors are clustered by judge (Equation H1) or immigration court (Equations H2–H3).

Our outcome of interest is a binary indicator for whether a respondent was granted relief (1) or ordered removed (0). In short, we classified a variety of outcomes within the three case types under study (removal, withholding, and asylum-only) as relief or removal. Following Hausman et al. (2023, p. 713), we code voluntary departure as a form of removal because the government achieves its enforcement objective even though the respondent avoids a formal removal order. Full details on outcome coding appear in the appendix.

To assess our hypotheses, our methodology includes several distinct explanatory variables. Equation H1 estimates the effect of prosecutorial backgrounds on relief decisions (H1a). Here, our primary variable is years of ICE/OPLA experience. These trial attorneys litigate removal cases

directly and represent the clearest case of immigration enforcement socialization. The years spent in this role are a proxy for the depth of socialization.[10] We separately measure years in three other prosecutorial roles — district attorney, assistant U.S. attorney, and special assistant U.S. attorney — to distinguish immigration-specific socialization from general prosecutorial experience. These positions involve litigating criminal cases for the government but lack direct exposure to immigration law and the immigration court system writ large. We also include years of Judge Advocate General (JAG) service as a control for military legal experience.

Equation H1 estimates the effect of defense background on relief decisions (H1b). Here, our primary variable is the years of experience as a nonprofit immigration attorney. We separately measure years in three other defense roles — private immigration attorney, nonprofit non-immigration attorney, and private non-immigration attorney. As with prosecutorial backgrounds, we expect immigration-specific defense experience to produce stronger effects than general defense work, given direct exposure to the evidentiary standards, credibility assessments, and procedural barriers faced by respondents in removal proceedings.

Equations H2–H3 test whether court composition conditions individual background effects. Our court composition measure is the leave-one-out proportion of judges with ICE/OPLA backgrounds in each court-year, excluding the focal judge to avoid mechanical correlation. It is important to note that court fixed effects do not absorb this measure. A court's composition changes from year to year as judges arrive and depart, and within a court-year the leave-one-out share differs across judges according to their own background. These two sources account for 43 percent of the variance in the measure, so the composition and interaction coefficients in Equations H2 and H3 are identified from

[10] Prior studies operationalize immigration enforcement backgrounds as judges who had experience working for ICE/OPLA, EOIR (or the BIA), and the Office of Immigration Litigation (OIL) (Blasingame et al. 2024). However, because EOIR/BIA attorneys support adjudication rather than litigating enforcement actions, and OIL handles appellate litigation, we do not consider these roles representative of immigration enforcement experience. Separately, years in a role count both the start and end years as full years given that we were unable to identify start and end months reliably.

variation within courts rather than from persistent differences between them. Equation H2 estimates the (non-interactive) effect of court composition on relief rates (H2). Equation H3 interacts court composition with years as an ICE/OPLA trial attorney and as a nonprofit immigration lawyer to test whether courts with a greater concentration of former ICE attorneys condition individual background effects (H3a, H3b).

Across the equations above, $\mathbf{X}$ is a vector of judge, case, and court controls. Judge-level controls include tenure (years on the bench at the time of decision) and an indicator for the political party of the appointing Attorney General (Democratic = 1, Republican = 0). Case-level controls include indicators for whether a respondent was flagged as a national security risk,[11] whether a case was heard over televideo, and whether a respondent had an attorney. These covariates have been found to impact case outcomes (DeMatte, Lindsay, and Ludsin 2022; Eagly 2014; Eagly and Shafer 2015; Ryo and Peacock 2021). Lastly, we control for whether the respondent is in ICE custody at the time of their hearing, given evidence that detention produces more restrictive outcomes (Eagly and Shafer 2024).

Across all models, we include region-of-origin fixed effects (ϕ_r) to account for unobserved country conditions,[12] court fixed effects (ψ_c) to absorb everything about a court that is constant over the sample period, including its case mix, local resources, and the circuit precedent under which it operates, and a linear year trend (τ) to address policy shifts over the sample period.[13] With court fixed effects, the background coefficients compare judges who sit in the same court, and the composition coefficients draw only on the within-court variation described above. Standard errors are clustered by judge for Equation H1 and by court for Equations H2–H3, reflecting the level at which our key explanatory variables vary.

Importantly, cases are as good as randomly assigned within courts and dockets (Hausman

[11] National security coding originates from DeMatte, Lindsay, and Ludsin (2022).

[12] For instance, some courts hear more Central American cases, which may involve domestic violence or gang-related claims with distinct evidentiary patterns (Hausman et al. 2023).

[13] Following Harris (2024), we use a trend rather than year fixed effects; results with year fixed effects are unchanged (Appendix Table A.3).

2016), and court fixed effects restrict every comparison to judges in the same court. Together, these features mean that differences in relief decisions do not arise from systematic differences in the cases judges receive or from fixed differences across courts. This design, however, cannot address selection into careers. Judges who became ICE attorneys or nonprofit immigration lawyers may have brought dispositions to the bench that also shape adjudication. The sensitivity analysis in Appendix C benchmarks the estimates against judge ideology, the most plausible channel of selection into careers. Although our interaction results are consistent with the proposed conformity mechanism, they cannot rule out alternative explanations involving selection into professional backgrounds or into courts.

6 Results

We begin by asking whether prosecutorial and defense experience predict relief decisions, and whether immigration-specific experience matters more than general prosecutorial or defense backgrounds. Column 1 of Table 2 reports estimates of Equation H1, which enters all nine background variables jointly. Consistent with H1a, immigration enforcement experience is associated with lower probabilities of granting relief. Each additional year as an ICE/OPLA attorney is associated with a decline in the likelihood of relief of roughly 0.15 percentage points ($p = 0.03$). While numerically small, this association accumulates over the course of a typical enforcement career. A judge with 10 years of ICE experience is predicted to grant relief at a rate about 1.5 percentage points lower than an otherwise similar judge in the same court with no ICE experience, a decline of about 5 percent relative to the mean judge-level relief rate of 30 percent.

Immigration enforcement experience is the only prosecutorial background with a statistically significant association. Years in other prosecutorial roles, including Special Assistant U.S. Attorney, district attorney, and Judge Advocate General positions, carry negative point estimates of similar magnitude but do not reach conventional significance, with JAG service marginally significant ($p = 0.10$). To assess whether immigration enforcement experience differs meaningfully from other prosecutorial pathways, we conduct pairwise F-tests comparing coefficients across prosecutorial roles. ICE/OPLA experience is significantly more restrictive than AUSA experience ($p = 0.03$),

Table 2: Professional Background, Court Composition, and Relief Decisions

	H1	H2	H3
ICE/OPLA Years	−0.002*		−0.003
	(0.001)		(0.002)
AUSA Years	0.002		
	(0.001)		
SAUSA Years	−0.002		
	(0.001)		
JAG Corps Years	−0.001†		
	(0.001)		
DA Years	−0.002		
	(0.002)		
Private Imm. Law Years	0.000		
	(0.001)		
Nonprofit Imm. Years	0.002		0.010***
	(0.002)		(0.002)
Private Non-Imm. Years	0.001		
	(0.001)		
Nonprofit Non-Imm. Years	−0.003		
	(0.003)		
Proportion ICE/OPLA		0.000	−0.026
		(0.031)	(0.042)
Prop. ICE/OPLA × ICE Years			0.003
			(0.004)
Prop. ICE/OPLA × Nonprofit Imm. Years			−0.018**
			(0.006)
Tenure	0.001*	0.002***	0.001**
	(0.001)	(0.000)	(0.000)
Appointed by Democratic AG	0.001	0.002	0.000
	(0.010)	(0.011)	(0.010)
Respondent Detained	−0.184***	−0.183***	−0.185***
	(0.017)	(0.036)	(0.034)
National Security Case	0.027	0.030	0.024
	(0.037)	(0.052)	(0.052)
Televideo Hearing	0.029*	0.029	0.030
	(0.011)	(0.018)	(0.018)
Had Attorney	0.306***	0.307***	0.307***
	(0.011)	(0.025)	(0.025)
Year	−0.034***	−0.034***	−0.034***
	(0.003)	(0.005)	(0.005)
Observations	535,270	550,827	544,670
R^2	0.327	0.324	0.326
Region FE	Yes	Yes	Yes
Court FE	Yes	Yes	Yes
Clustering	Judge	Court	Court
Note:	†p<0.1; *p<0.05; **p<0.01; ***p<0.001		

whose coefficient is positive, but statistically indistinguishable from state prosecutor and JAG experience ($p = 0.91$, 0.94, and 0.87). These results suggest that prosecutorial backgrounds are heterogeneous: immigration enforcement experience is distinct from federal prosecution outside immigration, but the data cannot separate it from local or military prosecutorial work.

Defense backgrounds present a different picture, at least on average. Years of nonprofit immigration defense experience are positively associated with relief decisions, but the estimate does not reach statistical significance ($p = 0.18$). Private immigration practice does not significantly predict relief outcomes, nor does non-immigration defense experience in either private or nonprofit settings, and pairwise tests cannot distinguish nonprofit immigration experience from either private immigration practice ($p = 0.21$) or nonprofit work outside immigration ($p = 0.11$). The two immigration-specific backgrounds nonetheless pull in opposite directions: the ICE/OPLA and nonprofit immigration coefficients differ significantly from one another ($p = 0.02$). As Column 3 shows, the average appears to conceal a conditional relationship. Where a judge has no former ICE/OPLA colleagues, each year of nonprofit immigration experience is associated with a 1 percentage point higher probability of relief ($p < 0.001$), and the association declines toward zero as the share of such colleagues rises. We return to this pattern below.

In general, control variables behave as expected. Having an attorney is associated with an approximately 31 percentage point higher probability of relief, consistent with prior research on the importance of legal representation in immigration proceedings (Eagly and Shafer 2015; Ryo and Peacock 2021). Respondents in detained custody are about 18 percentage points less likely to receive relief, consistent with prior findings on the effects of detention on case outcomes (Eagly and Shafer 2024). Notably, the coefficient estimate for tenure is positive and significant across all models, suggesting that on-the-bench experience does not uniformly lead to restrictiveness. Televideo hearings are positively associated with relief, although the estimate is significant only with judge-clustered standard errors in Column 1. Lastly, relief rates decline over the sample period, with each year associated with a 3.4 percentage point reduction in the probability of relief.

We next assess whether the professional composition of a court is independently associated with

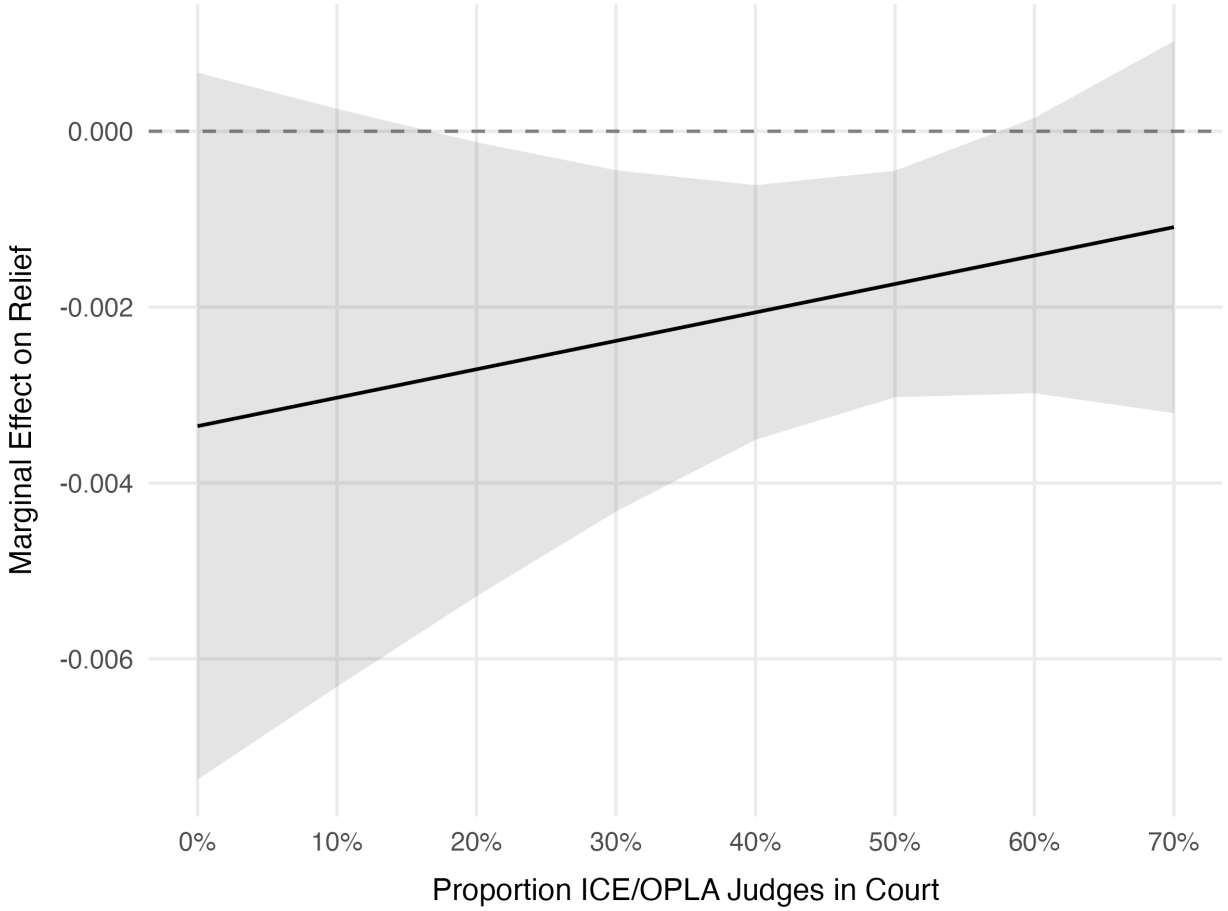
relief outcomes. Column 2 of Table 2 reports estimates for H2. We expect that IJs operating in more homogeneous courts — those with a larger proportion of judges with immigration enforcement backgrounds — grant relief at lower rates. The coefficient is essentially zero and not statistically significant. It is worth highlighting the demanding nature of this test. The coefficient estimate draws only on changes in a court's composition over the sample period, not on differences in composition across courts, which the fixed effects absorb. Substantively, this suggests that IJs in courts with higher concentrations of former ICE attorneys are not uniformly more restrictive. Instead of a direct effect, court composition may operate by conditioning the relationship between individual judges' professional backgrounds and their decisions. We examine this possibility in H3.

Column 3 of Table 2 tests whether court composition conditions the associations between immigration enforcement and immigration defense experience and relief decisions (H3a and H3b), entering both interactions jointly. Consistent with H3a, the interaction between years of ICE experience and court composition is small and not statistically significant (0.003, SE 0.004; 95 percent CI −0.005 to 0.011). We find no evidence that the negative association between immigration enforcement experience and relief decisions weakens or strengthens as the proportion of former ICE IJs in a court increases. As Figure 3 shows, the marginal effect of a year of ICE experience is −0.3 percentage points where a judge has no former ICE colleagues and −0.2 percentage points ($p < 0.01$) where half of them have enforcement experience. That is to say, former ICE IJs grant relief at lower rates whether or not enforcement experience is prevalent among their colleagues.

The same column presents parallel results for nonprofit immigration defense experience. Consistent with H3b, the interaction between years of nonprofit immigration experience and court composition is negative and statistically significant (−0.018, SE 0.006, $p < 0.01$). The positive association between immigration defense experience and relief decisions diminishes as the share of former ICE colleagues rises. As Figure 4 shows, the marginal effect of a year of nonprofit immigration experience is 1.0 percentage point where a judge has no former ICE colleagues ($p < 0.001$), 0.6 percentage points where a quarter have enforcement experience, and 0.1 percentage points where half do. The association is no longer statistically distinguishable from zero once former ICE

IJs make up about 46 percent of a judge's colleagues, a threshold that 57 percent of cases in the sample exceed. In courts with higher proportions of former ICE IJs, additional years of nonprofit immigration experience no longer predict higher relief rates.

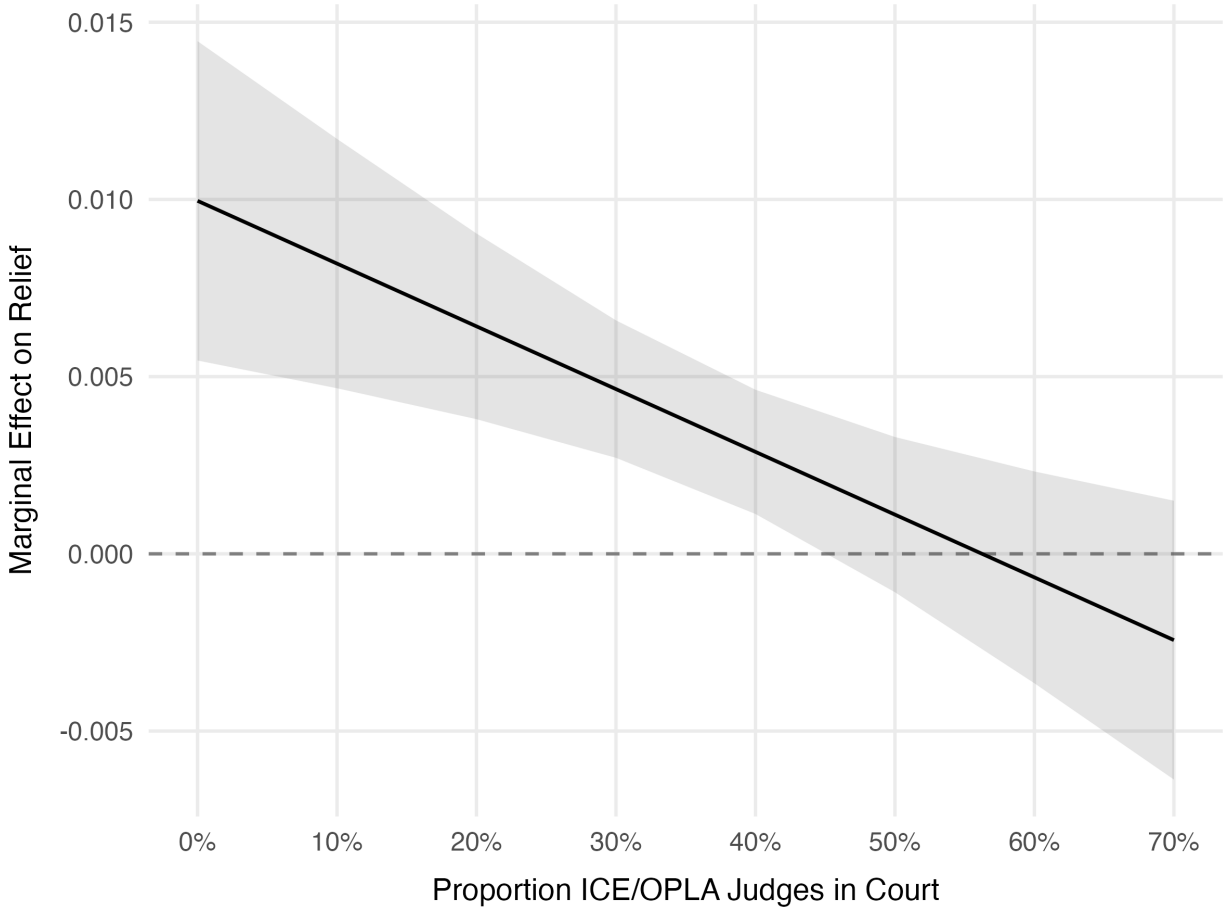
Figure 3: Marginal Effect of ICE/OPLA Experience on Relief by Court Composition



Note: Marginal effect of years of ICE/OPLA experience on probability of granting relief, conditional on the leave-one-out proportion of ICE/OPLA judges in the court, from Column 3 of Table 2. Composition is shown from 0 to 70 percent, the range containing 90 percent of cases. Shaded area represents 95% confidence intervals. Standard errors clustered by immigration court.

Our results show that the influence of professional background depends on court context, but only for one kind of background. Court composition does not exert a uniform direct effect on relief outcomes. Nor does it condition the association between immigration enforcement experience and relief. Former ICE IJs grant relief at lower rates regardless of how many of their colleagues share that background. Instead, composition shapes whether immigration defense experience impacts

Figure 4: Marginal Effect of Nonprofit Immigration Experience on Relief by Court Composition



Note: Marginal effect of years of nonprofit immigration defense experience on probability of granting relief, conditional on the leave-one-out proportion of ICE/OPLA judges in the court, from Column 3 of Table 2. Composition is shown from 0 to 70 percent, the range containing 90 percent of cases. Shaded area represents 95% confidence intervals. Standard errors clustered by immigration court.

judges' decision-making. In courts where few colleagues have enforcement backgrounds, nonprofit immigration experience is strongly associated with granting relief, but as the share of former ICE colleagues rises, that association attenuates toward the local norm.

These asymmetric results help adjudicate among the four accounts discussed above. Identity threat, which predicts that both backgrounds express themselves more strongly as former ICE colleagues become more numerous, is contradicted by the negative nonprofit interaction. Amplification, which predicts that both interactions are negative, is inconsistent with the ICE interaction, whose point estimate has the wrong sign and whose confidence interval reaches only −0.005.

Symmetric conformity, which predicts a positive ICE interaction, is not supported, although the confidence interval does not exclude a small positive value. Asymmetric conformity, which predicts no ICE interaction and a negative nonprofit interaction, fits the estimates.

Across a range of alternative specifications, our results remain substantively consistent (Appendix Tables A.1–A.5).[14] First, using binary indicators for professional background, or restricting the sample to judges who stayed in one career path (judges can have multiple pre-judicial positions, such as having worked in both enforcement and defense), preserves the signs of the immigration-specific coefficients but not their precision, consistent with the duration of experience mattering rather than any exposure to a role. Second, excluding low-volume judges and small courts does not meaningfully alter the magnitude or significance of the ICE coefficient or the nonprofit interaction. Third, replacing the linear time trend with year fixed effects produces nearly identical results, indicating that the findings are not driven by assumptions about temporal trends. Fourth, logit models reproduce the pattern of Table 2 where the ICE coefficient and the nonprofit interaction remain significant, and the nonprofit main effect and ICE interaction remain imprecise. Fifth, disaggregating by case type shows that the ICE association holds within removal proceedings, the dominant case category, and the smaller asylum-only and withholding-only samples show similar but noisier patterns. The nonprofit interaction is also not driven by any single judge or court, remaining negative and significant after dropping any one of the 45 judges with nonprofit immigration experience or any one of the 67 courts (Appendix Figures B.1 and B.2). Finally, a sensitivity analysis benchmarked against judge ideology, the most plausible source of selection into careers, indicates that an unobserved confounder would need to be several times as strongly related to relief decisions and to professional background as ideology is to reduce either the ICE coefficient or the nonprofit interaction to zero (Appendix C).

[14] Results are also similar when the prosecutorial and defense variables, or the two interactions, enter one at a time rather than jointly (Appendix Table B.1), including the nonprofit main effect, which is marginally significant when the defense variables enter alone.

7 Conclusion

The relationship between professional backgrounds and decision-making in immigration court depends on court context — that is, where experience meets environment. Our findings show that professional backgrounds are associated with systematic differences in judges' relief decisions, and that these associations are confined to immigration-specific experience on both the enforcement and defense sides. They take different forms, however. Former ICE attorneys grant relief at lower rates regardless of who their colleagues are, whereas former nonprofit immigration attorneys grant relief at higher rates only where few of their colleagues share an enforcement background.

Court composition, in turn, conditions how professional experience relates to adjudication, in a pattern consistent with asymmetric conformity. By this account, in courts with higher proportions of former ICE IJs, those IJs with backgrounds in nonprofit immigration defense, who would otherwise grant relief at higher rates, become highly visible outliers and potential targets for sanction by agency leadership that rewards strict immigration enforcement. By contrast, former ICE IJs who operate in more professionally heterogeneous courts do not face the same top-down costs for standing out in terms of restrictiveness. In essence, the local norms of an immigration court, as shaped by professional composition, function as a ceiling for permissiveness but not as a floor for restrictiveness.

This article advances research on the relationship between judges' backgrounds and judicial decision-making in two key ways. First, it disaggregates professional experience by institutional and practice background, showing that immigration-specific experience is associated with patterns of adjudication that coarser occupational categories obscure. Pooling all prosecutors, for example, would hide the fact that years as an Assistant U.S. Attorney and years as an ICE attorney point in opposite directions, and measuring experience as a binary indicator rather than in years would miss the accumulation of enforcement experience that the results reveal. By distinguishing among different forms of prosecutorial and defense experience, the analysis suggests that variation in adjudication is structured by the content and duration of prior professional roles.

Second, the paper provides evidence that institutional context can moderate the expression of

individual backgrounds, and that the moderation can run in only one direction. Existing work often treats socialization as engendering perspectives that judges carry with them onto the bench, regardless of the potential cost of these once-useful heuristics (Harris and Sen 2026; Miller and Curry 2023; Keith, Holmes, and Miller 2013). Our findings complicate this view by suggesting that the expression of such cognitive habits, evaluative frameworks, and normative orientations may depend on the risk of visibility and sanction in the new workplace environment, a risk that in immigration court falls on permissiveness rather than restrictiveness. In doing so, the study speaks to broader debates about judicial behavior by suggesting how institutional environments condition when judge-level variation in decision-making, whether rooted in identity or experience, is likely to emerge (Harris 2024).

The limitations of our study point to several directions for future research. While we theorize how professional backgrounds shape decision-making heuristics, we cannot directly observe how judges interpret case facts, assess respondent credibility, or evaluate other features of a case that affect outcomes. The empirical results document systematic differences associated with professional background, but they cannot identify the specific interpretive shifts or informal practices that may lead to asymmetric conformity in decision-making within particular courts. Nor can administrative data reveal whether such conformity arises through informal peer comparison, case discussion, or changes in how judges interpret law over time. Future research combining large-scale quantitative analyses with interviews and courtroom observation would allow scholars to examine these processes directly and to trace more precisely how institutional environments condition the expression of professional experience.

Lastly, our data span only four years. A longer panel is needed to test whether individual judges' decisions shift as their colleagues change, and the rapid turnover on the immigration bench since 2025 is likely to produce exactly the abrupt changes in court composition that such a test demands. A longer panel would also speak to two questions the present data leave open. First, we cannot fully disentangle socialization from selection. Judges may sort into professional roles based on predispositions that later shape adjudication, and although the conditional pattern we observe is

consistent with conformity, it does not rule out selection into backgrounds or courts. Longitudinal career data would clarify the mechanisms further. Second, we cannot tell whether the attenuation we identify is immediate or emerges gradually as IJs accumulate tenure in a given court. Our sample period (2015–2018) spans the transition from the Obama to the first Trump administration; whether the same dynamics hold, or intensify, under the second warrants further investigation.

Future research on the relationship between professional backgrounds and judicial decision-making, moreover, need not stop at immigration court. The pattern we document, in which the expression of prior heuristics depends on the composition of the bench, may operate in other administrative adjudicatory settings that often escape empirical attention: Social Security disability hearings, veterans' benefits appeals, and the Tax Court, among others. These venues decide far more cases each year than the federal courts and shape people's daily lives in ways that are no less consequential. Our framework also predicts the direction of any such asymmetry. Local norms should cap whichever behavior an agency's principals penalize, which in immigration court is leniency. Examining whether these patterns emerge across settings would clarify the generalizability of our framework.

For decades, advocates have proposed converting immigration courts into Article I ("legislative") courts, arguing that greater independence would reduce politicization (e.g., Baibak 2018; Birdsong 2013; Legomsky 2010). Legislatively, these proposals have gone nowhere, but our findings clarify what such a reform would and would not change. Formal independence from the Attorney General would reduce the risk of top-down sanction that, on our account, leads IJs with backgrounds in immigration defense to conform in courts dominated by former ICE attorneys. Independence would not, however, change who sits on the bench. So long as EOIR continues to draw heavily on former ICE attorneys, the lower relief rates associated with that background would likely persist. Addressing this underlying pattern would require changes in recruitment practices.

Theoretically, our study complicates traditional understandings of judicial independence. This concept typically signifies insulation from formal principals, meaning a vertical relationship between judges and those who appoint, supervise, and remove them (Staton, Reenock, and Holsinger

2022). Our findings suggest a lateral dimension — professional diversity — along which co-equal colleagues, sharing a workplace, influence one another, even if that influence runs in only one direction in practice. These two dimensions are interdependent; the composition of a court determines who stands out, and thus who is exposed to pressure from above. This dynamic is consistent with evidence that judges are shaped not only by formal principals but by those working alongside them, even absent formal deliberation (Harris 2024). The lateral dimension influences whether formal independence — insulation from top-down pressures and inter-branch interference — actually leads to decisional variation. To the extent that the pressure to conform arises from colleagues as well as principals, professional diversity among formally co-equal peers is a *structural precondition* for substantive independence. Without it, formal independence in administrative courts may mean less than advocates suggest.

The human stakes of these differences cannot be overstated. For noncitizens, a few percentage points in the probability of relief are the difference between remaining in the United States and deportation — often the dividing line between safety and danger, family unity and separation, or even life and death. With 3.1 million cases pending as of September 2026 (Transactional Records Access Clearinghouse 2026), the stakes continue to grow. The second Trump administration now treats former prosecutors as an asset (Bustillo 2025a), and former defense attorneys as an obstacle (Bustillo 2025b). Under these circumstances, the contours of the American "dual state" become clear, wherein formally liberal legal procedures increasingly mask substantively illiberal outcomes for subaltern populations such as immigrants (McCann and Kahraman 2021). Each case appears to receive individualized judgment, even as courts dominated by former ICE attorneys cap the leniency that might otherwise make such judgment meaningful.[15]

[15]Generative AI tools were used in preparing this article. In January and February 2026 the authors used OpenAI's ChatGPT-5.2 and Anthropic's Claude Opus 4.6 to proofread and format the initial manuscript. In September 2026, after the authors agreed on a set of changes to the model specifications, they used Claude Code (model Fable 5.1) to revise, extend, and check the replication code; to regenerate the tables and figures in the manuscript and appendix; to identify and verify

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published sources on group polarization, minority influence, and conformity for the rival accounts in the theory section; and to check the manuscript against the results and the journal's submission requirements. The authors drafted the revised manuscript. Claude Code was used to edit the authors' prose, including this statement, and to revise the text of the online appendix to reflect the updated results; the authors evaluated each suggested edit individually and accepted, modified, or rejected it. All AI-assisted material was reviewed and verified by the authors, who take full responsibility for its accuracy.

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